

**OVERRIDDEN PASSED
VETOED**

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 12-10
Subpoena Powers of the Tribal Legislature and Committees

Bja
2-21

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the Office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the proper and efficient conduct of inquiries by committees of the Chickasaw Tribal Legislature requires said committees and members thereof to have powers hereinafter set out, and

WHEREAS, a means of enforcing compliance with the subpoenas of such committees and/or compelling witnesses to testify before such committees, through the Supreme Court of the Chickasaw Nation, or other Courts of the Chickasaw Nation or judges thereof, is also required.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature, in furtherance of the foregoing, adopts the following as amendments to Title 16 of the Code of the Chickasaw Nation, to wit:

SECTION 16-107, part (F), shall be re-designated as SECTION 16-107, part (F) (1); and, a part (F) (2) shall be added, to wit:

"Committee" also means and includes the committee-of-the-whole, any standing, special, joint or ad hoc committees and sub-committees of the Chickasaw Tribal Legislature of any session of the Chickasaw Nation Tribal Legislature, which consists of any such members of the Chickasaw Tribal Legislature.

Add SECTION 16-205, part (C) to read as follows:

The Chairperson of the Chickasaw Tribal Legislature or the Chairmen or other committee member presiding over a meeting of a committee shall have power to administer oaths to witnesses appearing before said committee at said meeting.

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Add SECTION 16-205, part (D) (1) to read as follows:

When the Tribal Legislature or a committee of the Tribal Legislature, in the course of the performance of their duties, deem it necessary for persons to attend and give witness before the Tribal Legislature or committee of the Tribal Legislature, then a request for their attendance shall be made, before a subpoena be issued to compel such attendance. This shall be the same process used in requesting information, records, materials or other things that the Tribal Legislature or a committee may need in regard to aiding them in the performance of their duties as Legislators and committee members. Failure to comply with the request of the Tribal Legislature or a committee by not appearing before them or by not bringing such information, records or things requested, without good reason, shall be compelling justification for requesting the issuance of a subpoena.

Add SECTION 16-205, part (D) (2) to read as follows:

During any session of the Chickasaw Tribal Legislature, and when the Chickasaw Tribal Legislature is not in session, a committee shall have power to authorize subpoenas in order to compel attendance of witnesses and the production of any papers, books, accounts, documents, testimony and evidence, and to cause the deposition of witnesses to be taken. Any subpoena that is authorized by any committee of the Chickasaw Tribal Legislature, shall be issued by and under the signature of the Chairperson of the Tribal Legislature, or the Secretary of the Tribal Legislature, whomever one is available to issue such subpoena. Neither the Chairperson nor the Secretary of the Chickasaw Nation Tribal Legislature shall refuse to issue and sign any subpoena properly approved and presented by any committee of the Chickasaw Tribal Legislature.

Add SECTION 16-205, part (D) (3) to read as follows:

A subpoena shall be in the form of a typewritten document; and, at a minimum, shall contain the following:

- (a) the title "SUBPOENA"
- (b) by and for _____
(Name of Committee)
- (c) the date of issuance

- (d) the name and last known address of the person being subpoenaed and/or as detailed a description as is possible of the things, information, records or materials being subpoenaed
- (e) the date that the subpoena must be complied with
- (f) signature lines for committee Chairman and officer of the Tribal Legislature
- (g) a statement as to how subpoena is to be served

Add SECTION 16-205, part (D) (4) to read as follows:

A subpoena shall be in letter-size form and additional pages may be added, when necessary, and attached to the subpoena.

Add SECTION 16-205, part (D) (5) to read as follows:

The Chairperson or Secretary of the Tribal Legislature may designate persons to serve subpoenas. An affidavit, signed by the server of a subpoena, stating the date, time and place of service shall be sufficient notice that service was completed. Service of a subpoena by mail shall be done by certified mail and shall be deemed sufficient service when mailed to the last known address of person being subpoenaed.

Add SECTION 16-205, part (E) (1) to read as follows:

Failure of any person to comply with any subpoena issued in behalf of said committee or the refusal of any witness to testify to any matters regarding which such person may be lawfully interrogated, the Chairman, Chairperson, or other acting Chair of said committee authorized thereby shall make application to any court of the Chickasaw Nation Tribal Justice System or CFR Court requesting that a contempt citation be issued to such person. It shall be the duty of a judge of the Chickasaw Nation Tribal Justice System or a judge of the CFR Court to proceed with respect to such person or thing under subpoena, in the same manner and with the same powers to punish for contempt, as would be the case if the refusal had been a refusal to comply with a subpoena as if originated by such courts of the Chickasaw Nation Tribal Justice System or the CFR Court.

Add SECTION 16-205, part (E) (2) to read as follows:

In addition to the issuance and enforcement of a contempt citation of a court of the Chickasaw Nation or CFR Court,

such person in their failure to comply, if they are elected or appointed officials or employees of the Nation, may, also, be subject to disciplinary action under the complaint of the willful neglect of duty of such person.

Add SECTION 16-205, part (F) to read as follows:

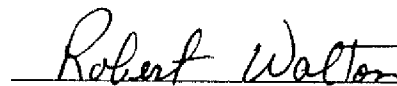
Witnesses called before any committee of the Chickasaw Tribal Legislature may be paid the same fees and mileage as are paid in cases before the CFR Court.

Add SECTION 16-205, part (G) to read as follows:

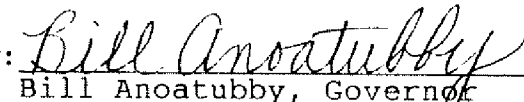
The Chickasaw Tribal Legislature may adopt rules or resolutions which expressly deny the powers granted herein to any committee as heretofore described.

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on February 17, 1994, by a vote of 13 ayes, 0 nays, 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

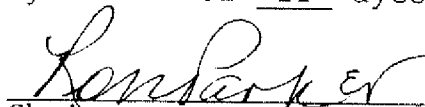
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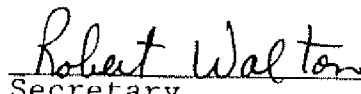
~~Senator:~~ 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: FEB 21 1995

**VETO
OVERRIDDEN**

Gubernatorial veto overridden in regular session of the Chickasaw Tribal Legislature meeting at Ada, Oklahoma, on March 17, 1995, by a vote of 11 ayes, 0 nays, and 1 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature


3-17-95